

this Act for the time being applies, and no such rules of court affecting appeals from any colony in particular shall be made unless the draft has been approved in such manner as the Legislature of that colony may determine.

(3) Any such rules shall, subject to disallowance by His Majesty, come into operation on a day specified in the rules for the purpose, and any disallowance by His Majesty shall take effect as from the date to be directed by the Secretary of State and published in the Gazette in which official notices are published in each of the colonies to which this Act for the time being applies, but without prejudice to any proceedings taken before such publication.

(4) Any fees paid in pursuance of any such rules shall be applied and dealt with in such manner as may be directed by His Majesty in Council.

6. The expenses of the Court of Appeal shall be borne by the colonies to which this Act for the time being applies in such proportion as may from time to time be fixed by His Majesty in Council. Expenses.

7. Subject to any provision which may be made by the Legislature of any colony to which this Act for the time being applies, whereby appeals from any court in that colony are to be made in the first instance to the Court of Appeal, nothing in this Act shall prejudice or affect the right of any person to appeal to His Majesty in Council. Saving for jurisdiction of Privy Council.

8.—(1) The Windward Islands Appeal Court Act, 1889, is hereby repealed, and any appeals pending in the court established under that Act shall, subject to rules of court made under this Act, be transferred to the Court of Appeal. Repeal, short title and commencement.
52 & 53 Vict.
c. 33.

(2) This Act may be cited as the West Indian Court of Appeal Act, 1919.

(3) This Act shall come into operation on the first day of July, nineteen hundred and twenty, or on such earlier date as may be fixed by His Majesty by Order in Council.

CHAPTER 48.

An Act to amend the Coal Mines Acts, 1887 to 1914, with respect to the Hours of Employment below Ground.
[15th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Reduction of
hours of em-
ployment
below ground
8 Edw. 7. c. 57.

1. The Coal Mines Regulation Act, 1908, in its application to mines in which coal is worked shall have effect subject to the following modifications—

- (a) as from the sixteenth day of July nineteen hundred and nineteen, this Act shall have effect as if in subsections (1) and (2) of section one thereof for “eight hours” there were substituted “seven hours,” and as if in proviso (a) to subsection (7) of section one thereof for “nine hours and a half” there were substituted “eight hours”; and
- (b) if, after the end of the year nineteen hundred and twenty, a Resolution is passed by both Houses of Parliament that the economic position of the coal industry is such as to allow a further reduction of working hours, then, as from the thirteenth day of July nineteen hundred and twenty-one, the Act shall have effect as if in subsections (1) and (2) of section one thereof for “eight hours” there were substituted “six hours,” and as if in proviso (a) to subsection (7) of section one thereof for “nine hours and a half” there were substituted “seven hours”; and
- (c) in proviso (a) to subsection (7) of section one thereof the word “onsetter” shall be omitted:

Provided that the Secretary of State, after consultation with the workmen affected or their representatives, may, in the case of persons employed on work which requires to be carried on continuously by day and night, allow them to be employed below ground for not more than eight hours during any consecutive twenty-four hours.

Short title and
extent.

2.—(1) This Act may be cited as the Coal Mines Act, 1919, and the Coal Mines Acts, 1887 to 1914, and this Act may be cited together as the Coal Mines Acts, 1887 to 1919.

(2) This Act shall not extend to Ireland unless and until applied thereto by Order in Council, and any such Order may provide that in the application of this Act to Ireland such later dates as may be fixed by the Order shall be substituted for the dates mentioned in section one.

CHAPTER 49.

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March one thousand nine hundred and eighteen and one thousand nine hundred and twenty.
[15th August 1919.]